

ORDINANCE NO. _____

ENTITLED: **“AN ORDINANCE CREATING CHAPTER 5.78, TOWING AND WRECKER RECOVERY OPERATIONS, AMENDING CHAPTER 5.04, SECTION 5.04.030, TYPES OF BUSINESSES, ACTIVITIES AND EVENTS, AND CHAPTER 5.08, SECTION 5.08.270, TOWING (VEHICULAR), OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, AND REPEALING IN ITS ENTIRETY SECTION 10.12.190, TOWING FIRM STANDARDS, OF CHAPTER 10.12, ADMINISTRATION AND ENFORCEMENT, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE WYOMING.”**

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 5.78, Towing and Wrecker Recovery Operations, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, is hereby created as follows:

**CHAPTER 5.78
TOWING AND WRECKER RECOVERY OPERATIONS**

5.78.010 Purpose – Authority – General provisions.

A. The purpose of this chapter is to license, regulate and establish guidelines for businesses providing motor vehicle towing and wrecker recovery operations offered to the public within the city, including towing and wrecker recovery operators and their drivers.

B. Authority is granted cities and towns by Wyo. Stat. § 15-1-103(a) (xiii) and (xli) to license and regulate businesses for the public health, safety and welfare of the community.

C. In addition to business licensing provisions of this chapter, licenses shall be issued in accordance with Chapter 5.04 and Chapter 5.08, Section 5.08.270, of the city code.

D. Licenses may be suspended or revoked in accordance with Chapter 5.04, Sections 5.04.100 and 5.04.110 of the city code.

E. Every towing and wrecker recovery operator providing services under the provisions of this chapter must abide with the motor vehicle and traffic provisions of Title 10 of the city code and applicable local, state, and federal law.

F. Pursuant to Section 5.78.040 of this chapter, every written request by a business license applicant, or a current licensee, requesting participation on the police department's towing and wrecker recovery operations rotation list shall be approved by the chief of police, or

his or her designee. The chief of police shall have the authority to remove any licensee from participation on the rotation list pursuant to Section 5.78.050 of this chapter.

5.78.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

“Licensee” means any person, as defined in Section 1.04.020 of the city code, granted a license under this chapter to engage in the business of providing motor vehicle towing and wrecker recovery operations to the public within the city.

“Motor vehicle” means a commercial, motor, rental and/or U-Drive-It vehicle, and trailer as defined in Wyo. Stat. Section 31-1-101, and, for purposes of this chapter, includes horse-drawn vehicles.

“Rotation list” means the list compiled and maintained by the police department containing the names of licensees who have been approved by the chief of police, or his or her designee, to be placed on the department’s rotation list, and who will be requested by the police department to respond to the scene of accidents, incidents or emergencies involving motor vehicles and the necessity for towing and wrecker recovery operations.

“Storage area” means the area used by a towing and wrecker recovery operation for the storage of any towed motor vehicles. If the storage area is located within city limits, the area must meet city zoning requirements; in all instances the storage area shall have sufficient outdoor and indoor secure storage to be able to accommodate and secure any and all towed motor vehicles.

“Towing and wrecker recovery operations” (hereinafter “towing/recovery operation” or “towing/recovery operator”) means the business of, or offering the services of, a motor vehicle wrecker or towing service, whereby motor vehicles may be towed or otherwise removed from one place and transported to another by the use of a motorized towing vehicle designed for that purpose.

“Towing rotation list participant” or “participant” means any towing/recovery operation that has a current and valid business license and has been approved by the chief of police, or his or her designee, to be on the rotation list.

“Wyoming driver’s license” or “driving license” means an appropriate driver’s license as required by Wyo. Stat. Section 31-7-109, based on the gross vehicle weight of the towing vehicles being operated, as determined by the chief of police, or his or her designee.

5.78.030 Business license required.

A. A person shall not conduct, maintain, or operate a towing/recovery operation providing services within the city without a valid and current business license issued by the city clerk.

B. Any person desiring to conduct, maintain, or operate a towing/recovery operation within the city must first obtain a business license by submitting to the city clerk an application, together with a non-refundable annual license fee, on forms provided by the city clerk. An application, or annual renewal application, for conducting business as a towing/recovery operation must contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

1. If the applicant is an individual, the name and business address of the applicant; business mailing address and telephone number, and applicant's date of birth. If the applicant is a partnership or legal entity, the name of business (applicant), principal place of business and business mailing address and telephone number. In addition, the applicant for a partnership or legal entity must provide the names and business or residential addresses of the persons who hold any legal or beneficial interest in the business, and the dates of birth of the persons who hold any legal or beneficial interest in the business

2. Written proof of current State of Wyoming and United States Department of Transportation authorization to operate a towing/recovery operation business, including a copy of a current and valid vehicle salvage yard storage and disposal facility license as required under Wyo. Stat. Section 31-13-114, evidencing compliance with applicable rules and regulations.

3. Written proof that the applicant has current automobile insurance coverages as defined in and meeting the minimum insurance amounts required by Section 3 of Chapter 3 of the Rules and Regulations promulgated by the Wyoming Department of Transportation.

4. Names and written evidence of appropriate driving license for each towing/recovery driver or operator who will be employed, or who will be providing services, on behalf of the towing/recovery operation business. Any person employed as a driver or operator of a towing/recovery operation must possess a valid driving license.

5. Disclosure of whether the applicant has in the ten (10) year period prior to application ever had a license or application relating to operation of a towing/recovery operation revoked, suspended or denied, and whether the applicant, including any person who holds any legal or beneficial interest in the business (applicant), has ever been convicted of a crime other than a misdemeanor traffic offense.

6. Affirmation that the information contained in and submitted with the application form is complete, true and correct. Each application must be signed by the applicant in the presence of a licensed notary public. The applicant must also sign an authorization, in a form prescribed by the chief of police, which will be sufficient to authorize the chief of police to conduct a background investigation. The chief of police may impose a reasonable fee to recover costs associated with the investigation.

C. Upon receipt of and payment for an application for a business license, the city clerk will forward a copy to the chief of police for a background investigation of the applicant and a recommendation whether to approve or disapprove the application. The city clerk will also forward a copy of the application as applicable for review and recommendation by various city departments. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information, or due to any convictions involving any felony offenses, whether within Wyoming or elsewhere, involving, but not limited to, assault, battery and/or larceny and related offenses.

D. Following issuance of a business license, a licensee must notify the city clerk and chief of police of any change in the data required to be furnished under Section 5.78.030 within ten (10) days after any change occurs.

E. All holders of a business license issued under this chapter shall be required, in any instances when a holder has towed or otherwise removed a motor vehicle from one place and transported to another, when such tow or removal (i) was not requested or otherwise initiated by the police department and (ii) was not requested by the owner of the vehicle, or representative of the owner, to notify the police dispatch center, or any other location specified by the police department, of the tow or removal by telephone call within twenty (20) minutes of performing such tow or removal.

F. All holders of a business license issued under this chapter may be required by the police department to attend any training session(s) as the police department deems to be necessary and appropriate, including but not limited to Traffic Incident Management System (TIMS) training.

5.78.040 Towing rotation list participation; requirements.

A. No towing/recovery operator shall be included on the rotation list without first having obtained a business license from the city clerk.

B. To be added to or included as a participant on the police department towing rotation list, licensees shall:

1. Submit a copy of a current and valid vehicle salvage yard storage and disposal facility license as required under Wyo. Stat. Section 31-13-114, evidencing compliance with applicable rules and regulations.

2. Possess a vehicle storage area of such size to allow for secure storage of all vehicles towed at the request of the police department. The storage area shall be enclosed by a solid fence or chain link fence at least six (6) feet in height, and lighted in such a manner to maximize safety and security of stored vehicles. Towing/recovery operations must also have an indoor secure facility available to be used at the request of a vehicle owner, the discretion of the towing or wrecker driver, or at the direction of a requesting police officer. Each towing list participant is required to possess its own vehicle storage area meeting the requirements of this paragraph. For the avoidance of doubt, no towing list participant shall share or otherwise utilize in common a vehicle storage area with any other towing/recovery operation.

3. Furnish the city clerk and chief of police with a written request for participation in the towing rotation list. Request may be made upon an applicant's initial business license application or by separate written request if a license has previously been issued. The chief of police, or his or her designee, shall have the authority to approve or deny the request, based upon compliance with city, state and federal law and regulations, within twenty (20) business days after receipt thereof. Notwithstanding the foregoing, the chief of police, or his or her designee, shall approve a request if full compliance with all city, state and federal law and regulations has been demonstrated. Upon approval, the chief of police shall issue the applicant written approval indicating the licensee's approved participation on the rotation list. A copy of the written approval shall be provided to the city clerk, chief of the fire and rescue department and city traffic engineer. The chief of police may suspend or revoke a licensee's participation in the towing rotation list pursuant Section 5.78.050 B. of this chapter.

4. Provide written affirmation that the licensee will:

a. Maintain the following minimum required towing vehicle equipment in good working condition:

- i. Emergency lights
- ii. Remote tail and stop lights
- iii. Fire extinguisher
- iv. Broom, shovel, bucket
- v. Spill absorbing materials
- vi. ANSI safety vest
- vii. Spotlight and flashlight
- viii. Flares and safety triangles
- iv. Webbing and strapping

b. Ensure that all towing/recovery drivers/operators are properly trained and knowledgeable in the operation of all equipment. Each licensee is responsible for background checks on individual drivers/operators.

c. Clean up all debris at a response scene, except for hazardous materials as defined by 49 U.S.C. 5103 and 49 C.F.R. 172.101.

d. Provide the police department with a current telephone number or numbers where the towing/recovery operation may be reached on a seven day/twenty-four (24) hour basis.

e. Abide by a fee schedule for towing charges related to calls for service made pursuant to the towing rotation list. The fee schedule shall be proposed by the police department and adopted by the governing body in the form of a resolution. Any amendment to the fee schedule increasing fee limits shall be adopted by the governing body in the form of a resolution. Any variation in charges in excess of the fee schedule requires (i) express written or oral preapproval from an officer or designee of the police department prior to performing the towing services giving rise to the excess charges and (ii) sufficient written and photographic

documentation provided to the police department to justify the additional charges. Notwithstanding the foregoing, the chief of police may promulgate additional documentary requirements for any variation in charges in excess of the fee schedule.

f. Follow any reasonable request made by a law enforcement officer or emergency responder.

g. Immediately accept payment offered and made during normal weekday business hours or normal weekend business hours of any fee promulgated pursuant to the fee schedule described in subparagraph (e), above, if payment is offered pursuant to the forms described in subparagraph (j), below. For the purposes of this chapter, "normal weekend business hours" shall include at least four consecutive (4) hours on either Saturday or Sunday of a given week. For the avoidance of doubt, the requirement of this subparagraph shall not preclude acceptance of payment made outside of normal weekday business hours, including but not limited to any "gate" fee that may be charged by the licensee.

h. Upon acceptance of payment described in subparagraph (g), above, release the towed vehicle to the vehicle owner, authorized operator, or authorized agent of the owner of the vehicle, the lienholder or agent of the lienholder of the vehicle, or the insurance company or agent of the insurance company providing coverage on the motor vehicle, if released to the insurance company by the vehicle owner.

i. Release items of personal property during normal weekday or weekend business hours without charge to the lawful owner of the towed vehicle when authorized by the police department. This requirement applies only to personal property items contained within the vehicle towed, but not considered part of the vehicle.

j. Accept cash and at least two major credit cards as form of payment.

k. Not solicit or move wrecked or disabled vehicles for which another towing list participant has been dispatched by the city.

C. All licensees who are towing rotation list participants must abide by the following guidelines regarding calls for service:

1. Towing rotation list participants should respond immediately to calls for service and arrive within 30 minutes of accepting a call for service (45 minutes during inclement weather). If unable to arrive within specified time, operator must notify the Police Department with the estimated time of arrival. Failure to respond within the specified time, or notify the Police Department of the delay shall be cause for the police department to contact the next scheduled operator;

2. Towing rotation list participants shall not transfer or attempt to transfer a call for service to another towing list participant;

3. If a towing rotation list participant fails to answer their telephone when called, or

rejects a call for service, it will be considered as a turn on the rotation list and said participant shall rotate to the bottom of the rotation list. When calling towing list participants, phones shall be allowed to ring a minimum of eight (8) times prior to determining that a participant is unavailable;

4. When contacting or attempting by telephone to contact a towing rotation list participant and receiving a busy signal or recording, the police department shall attempt to place the call two times. If no response is received, the effort shall be deemed a no-answer or rejection, and the participant shall rotate to the bottom of the rotation list. The police department shall then call the next participant on the rotation list.

D. Towing rotation list participants must:

1. Immediately contact the chief of police, or his or her designee, when a participant becomes aware that they will be unavailable for any reason, including, but not limited to, planned medical treatment, vacation, etc., so arrangements can be made for coverage for such time period and disruption of operations is avoided. In the event that the towing rotation list participant is unavailable, the participant shall rotate to the bottom of the rotation list.

2. Respond to tow abandoned vehicles when requested. Refusal to respond to an abandoned vehicle tow will be considered as a turn on the rotation list, and said participants shall rotate to the bottom of the rotation list.

3. Maintain towing and recovery reports affiliated with response to police department calls for services for at least one year from date of response. Included in the report should be vehicle owner name, address, telephone number, fees charged, and to whom the vehicle was released and the date of release. The chief of police, or his or her designee, reserves the right to inspect all participants' reports, records, vehicles, and storage areas for compliance with the provisions of city code and any applicable state and federal laws.

4. Receive clearance by the police department prior to releasing any vehicle that has been classified as a "Police Hold."

5. Assume full fiscal responsibility for all property and/or motor vehicles entrusted to them.

6. Refrain from releasing, within ten (10) hours of time of towing, any vehicle towed or recovered in connection with an incident involving driving under the influence of alcoholic/malt beverages or drugs to the individual who was driving said vehicle at the time of the violation.

5.78.050 Police department towing rotation list procedures; Participant removal from list.

A. Police department procedures involving the towing rotation list will be in accordance with the following:

1. The police department shall maintain a log of all calls or contacts made by the department to towing rotation list participants for response services made in connection with the rotation list.

2. Each towing list participant is only allowed one place on the rotation list, regardless of the number of towing or wrecker vehicles owned.

3. If the party requiring towing or recovery service requests a particular towing/recovery operator, the police department shall call the same. If the requested towing/recovery operator is not available, the next available participant on the rotation list shall be called. Special request calls shall not affect the rotation list or result in the "skipping" of any towing list participant. A towing/recovery operator need not be on the rotation list to be called in the case of a special request, but must still possess a valid business license issued by the city clerk and must abide by the fee schedule described in Section 5.78.040 B.3 of this chapter.

4. If the party requiring towing or recovery service has no preference, the police department shall call the next participant on the rotation list. If the towing/recovery operator is unavailable or cannot otherwise respond after being contacted pursuant to the provisions of this chapter, the next participant on the rotation list shall be called.

5. Should responding police officers or fire fighters determine that an accident or incident has resulted in a life threatening condition, towing/recovery operators may be called out of the rotation list order, should the same be located closer to the emergency where they could respond more expediently than the next participant on the rotation list.

B. The chief of police shall have the authority to remove any participant from the towing recovery rotation list, or penalize any participant under Section 5.78.060 of this chapter, based upon non-compliance or violations of this chapter, other applicable provisions of city code, or state or federal law. The chief of police may also remove a participant from the rotation list upon receipt and investigation of any written complaint submitted to the chief of police from members of the public. The chief of police shall provide written notification to any participant relative to removal from the list and the accompanying reasons therefore, and will provide the city clerk with a copy of the notification.

5.78.060 Participant violation of towing rotation list requirements and appeal process

A. Upon receipt of a complaint, the chief of police, or his or her designee(s), shall, within ten (10) business days, fully and diligently investigate the violations alleged in the complaint and document the same. The investigating officer shall thereafter contact the towing/recovery operation and obtain the towing/recovery operation's version of the facts and incident in question. After completing the investigation, the investigating official shall produce a report of the investigation and forward it to the chief of police, or his or her designee(s), within ten (10) business days of completion of the investigation.

1. Upon receipt, the chief of police, or his or her designee(s), shall, within ten (10)

business days, notify the towing/recovery operation of the investigation result.

B. Violation of rotation list requirements or operations, as set forth in Sections 5.78.040 and 5.78.050 of this chapter, by a towing rotation list participant shall be subject to the following penalties as determined by the chief of police:

1. First violation – Immediate removal from the police department towing rotation list for a six (6) month period.

2. Second violation – Immediate removal from the police department towing rotation list for a twelve (12) month period.

3. Third violation – Immediate and permanent removal from the police department towing rotation list.

C. Upon receipt of the notice, the participant may request a hearing. The request must be in writing and received by the city clerk within seven calendar days of receipt of the notice. Failure on the part of the participant to request a hearing in writing within the specified time period shall be deemed a waiver of the participant's right to request a hearing.

D. If a hearing is requested and received by the city clerk within the specified time period, the city clerk will schedule a hearing before the governing body and notify the participant in writing, by certified mail of the date, time and place of the meeting.

E. At the hearing, the participant and other interested parties may be in attendance to present any information relative to the removal from the City's towing/recovery rotation list. The hearing, deliberations and notification of decision from the governing body will be conducted pursuant to the Wyoming Administrative Procedure Act, Wyo. Stat. Sections 16-3-101, *et seq.* The City Clerk will notify the participant in writing, by certified mail, of the governing body decision as the result of the hearing.

5.78.070 Violation – General penalty.

It is unlawful for any person or licensee to violate any of the provisions of this chapter. Persons or licensees violating any provision of this chapter or causing the provisions of this chapter to be in violation will be guilty of a misdemeanor, punishable pursuant to the general penalty provision of the city code.

Section 2. That Chapter 5.04, Business Licenses Generally, Section 5.04.030, Types of businesses, activities and events, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, is hereby amended as follows with wording of Section 5.04.030 not set out below to remain unchanged:

~~Towing firms/businesses (on police rotation list);~~

TOWING AND WRECKER RECOVERY OPERATIONS;

Section 3. That Chapter 5.08, Business License Fees, Section 5.08.270, Towing (Vehicular), of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne Wyoming, is hereby amended as follows:

5.08.270 ~~Towing (vehicular).~~ **TOWING AND WRECKER RECOVERY OPERATIONS.**

The license fee for conducting a towing ~~(vehicular)~~ AND WRECKER RECOVERY OPERATIONS business ~~desiring to be on the police department rotation call list~~ will be ninety dollars (\$90.00) annually per location of business. All persons applying for a license must comply with ~~the towing and operators' standards adopted by resolution by the governing body pursuant to Section 10.12.190~~ **THE PROVISIONS SET FORTH IN CHAPTER 5.78 OF CITY CODE.**

Section 4. That Section 10.12.190, Towing firm standards, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the code of the city of Cheyenne, Wyoming, shall be repealed in its entirety.

Section 5. That this ordinance shall be in full force and effect upon its approval and publication but not sooner than January 1, 2014. All valid and current business licenses issued by the city clerk prior to the effective date of this ordinance shall remain in full force and effect until the next respective license expiration date, however, a current licensee will not be allowed to be a towing rotation list participant until requirements of Section 5.78.030 B.2. and Section 5.78.040 of this ordinance are met. In addition, any current licensee requesting and receiving approval to be on the towing rotation list will be subject to the provisions of Sections 5.78.040, 5.78.050, 5.78.060 and 5.78.070 of this ordinance.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune-Eagle

**Cheyenne Police Department**

ANNEX A

11/4/2013

Wreckers / Tow List**Jan 1, 2013 - Oct 31, 2013****Total Vehicles Towed: 2,185**

<u>Type of Calls</u>	<u>Totals</u>	<u>How Requested</u>	<u>Totals</u>
TRAFFIC STOP	464	Normal	1,266
ACCIDENT PROPERTY DAMAGE	435		
TOWED VEHICLE	290	Called - Busy	24
ACCIDENT WITH PERSONAL INJURY	170	Called - No Answer	367
FIELD INTERVIEW	161	Called - Refused	210
ACCIDENT INJURY	97		
ACCIDENT PROPERTY DAMAGE ROAD BLOCKAGE	83	Requested Specifically	168
ABANDONED VEHICLES	65		
ACCIDENT INJURY ROAD BLOCKAGE	52	Out of Sequence	65
TRAFFIC HAZARD	43	Moved To Top	85
TRAFFIC COMPLAINT	39		
ACCIDENT HIT & RUN	28	Total	2,185
SUSPICIOUS CIRCUMSTANCE	25		
HIT & RUN IN PROGRESS	18		
TRAFFIC COMPLAINT NOT IN PROGRESS	18		
DISTURBANCE IN PROGRESS	13		
ASSIST	12		
Drunk Person	12		
FOLLOW UP	12		
TRAFFIC EMERGENCY IN PROGRESS	12		
ASSIST OUTSIDE AGENCY	11		
DISTURBANCE	11		
SUSPICIOUS CIRCUMSTANCE IN PROGRESS	11		
TRAFFIC COMPLAINT PARKING NOT IN PROG	11		
DRINKING IN PARKED VEHICLE	8		
TRAFFIC ABANDONED VEHICLE	6		
DECEASED PERSON	5		
MAN DOWN	5		
REPORT EVERY DRUNK DRIVER IMMEDIATELY	5		
ACCIDENT PROPERTY DAMAGE DISTURBANCE	4		
DOMESTIC VERBAL DISTURBANCE	4		
STOLEN VEHICLE IN PROGRESS	3		
VANDALISM IN PROGRESS	3		
VIN CHECK	3		
WEAPONS VIOLATION	3		
ASSAULT	2		
BURGLARY TO RESIDENCE	2		
DISTURBANCE JUV.	2		
DOMESTIC DISTURBANCE IN PROGRESS	2		
HIT & RUN DISTURBANCE	2		
LARCENY IN PROGRESS	2		
PETROLEUM LEAK OR SPILL	2		
ProQA	2		
PROSTITUTION	2		
SUPPLEMENTAL REPORT INFORMATION	2		
UNKNOWN (3RD PARTY) IN PROGRESS	2		
WANTED PERSON	2		
911 Hang-Up Cellular	1		
ACCIDENT PRIOR	1		
ASSIST OUTSIDE AGENCY IN PROGRESS	1		
BEHAVIORAL PROBLEM IN PROGRESS	1		

CHILD ABUSE	1
CRIME SCENE/TECH	1
DISTURBANCE MUSIC	1
DRUNK DRIVER	1
FIREWORKS	1
LARCENY NOT IN PROGRESS	1
NARCOTICS CALL	1
NCIC HIT	1
RECKLESS DRIVER	1
SPECIAL DETAIL	1
SUICIDE ATTEMPT	1
SUSPICIOUS CIRCUMSTANCE NOT IN PROGRESS	1
VANDALISM NOT IN PROGRESS	1
WANTED/STOLEN	1
WEAPON VIOLATION IN PROGRESS	1
Total	2,185



Cheyenne Police Department

Wreckers / Tow List

Jan 1, 2013 - Oct 31, 2013

Total Vehicles Towed: 2,185

ANNEX A

11/4/2013

<u>5-OH Towing and Recovery</u>		117
Normal	83	
Called - No Answer	17	
Called - Refused	3	
Requested Specifically	1	
Out of Sequence	2	
Move To Top	11	
<u>Affordable Towing 205 Road 128A</u>		146
Normal	96	
Called - No Answer	20	
Called - Refused	3	
Requested Specifically	11	
Out of Sequence	1	
Move To Top	15	
<u>All Repos are OTHER</u>		152
Normal	152	
<u>All Ways Towing 1640 W 18th</u>		103
Normal	18	
Called - Busy	2	
Called - No Answer	33	
Called - Refused	49	
Requested Specifically	1	
<u>Big Als Auto 6526 Hwy 30</u>		174
Normal	112	
Called - No Answer	3	
Called - Refused	3	
Requested Specifically	40	
Out of Sequence	7	
Move To Top	9	
<u>C Bar H 315 W Jefferson</u>		41
Normal	33	
Called - No Answer	3	
Called - Refused	1	
Out of Sequence	2	
Move To Top	2	
<u>C Bar H Towing & Recovery</u>		2
Normal	1	
Move To Top	1	

<u>Cozad Towing 227 S Greeley Hwy</u>		119
Normal	75	
Called - Busy	2	
Called - No Answer	14	
Called - Refused	18	
Requested Specifically	4	
Out of Sequence	3	
Move To Top	3	
<u>Diamond A Towing</u>		101
Normal	46	
Called - Busy	2	
Called - No Answer	27	
Called - Refused	25	
Move To Top	1	
<u>Dougs Towing 513 E College</u>		173
Normal	104	
Called - Busy	2	
Called - No Answer	3	
Requested Specifically	50	
Out of Sequence	8	
Move To Top	6	
<u>Elite Towing 1640 w 18 St</u>		1
Called - No Answer	1	
<u>Express Towing 3112 S Greeley</u>		125
Normal	59	
Called - Busy	2	
Called - No Answer	36	
Called - Refused	8	
Requested Specifically	11	
Out of Sequence	2	
Move To Top	7	
<u>Fort Towing 3105 S Greeley Hwy</u>		137
Normal	95	
Called - Busy	1	
Called - No Answer	13	
Called - Refused	11	
Requested Specifically	4	
Out of Sequence	5	
Move To Top	8	
<u>Grabers Diesel Repair</u>		93
Normal	69	
Called - Busy	3	
Called - No Answer	11	
Called - Refused	8	
Out of Sequence	1	
Move To Top	1	

<u>Jiffy Towing 205 County Rd 128A</u>		97
Normal	33	
Called - Busy	1	
Called - No Answer	48	
Called - Refused	13	
Requested Specifically	1	
Move To Top	1	
<u>M&F Towing 205 Co Rd 128A</u>		148
Normal	90	
Called - No Answer	14	
Called - Refused	5	
Requested Specifically	32	
Out of Sequence	4	
Move To Top	3	
<u>Randys Towing 1002 W 17 St</u>		114
Normal	37	
Called - Busy	2	
Called - No Answer	40	
Called - Refused	25	
Requested Specifically	1	
Out of Sequence	3	
Move To Top	6	
<u>Shutts Towing 3112 S Greeley Hwy</u>		106
Normal	53	
Called - Busy	2	
Called - No Answer	30	
Called - Refused	10	
Requested Specifically	1	
Out of Sequence	4	
Move To Top	6	
<u>Used When Not Part of Rotation</u>		117
Normal	24	
Called - Busy	4	
Called - No Answer	38	
Called - Refused	20	
Requested Specifically	11	
Out of Sequence	20	
<u>Wreckers 215 S Greeley Hwy</u>		119
Normal	86	
Called - Busy	1	
Called - No Answer	16	
Called - Refused	8	
Out of Sequence	3	
Move To Top	5	

Signature: _____

Date 01/03/13	Time 17:30 PM	Requested by Lorraine Conway Shaffer
Name Carla Yasulevicz		
Address		
City	State	Zip
Location College Dr S of LCCC in Ashmore and 55 St.		
Year, Make, Model, Unit #, Color 2001 Suzuki XL-7 Black		Driver Name and Phone
State WY	Lic. Plate # TEND 235242	VIN # JS3TX92V71410
Card Imprint / Billing Info: 173758		

Card # _____
Exp. Date _____
Insurance Co. Shipper _____

Description of Work	Charges	
	Desc.	Amt.
Star 2938 28 miles @ \$5.50 per mile.		
- Respond to S College Dr Acres from LCCC in pasture	R/N	\$300.
- Recover vehicle back to all ways towing yard	Mileage	\$154.
- Storage @ \$50.00 per day starting 01/23/2013 to _____	Tow	\$125.00
- Administration Fee @ 10% of total bill	Storage	\$150.
	Admin Fee	\$73.
Vehicle Towed To: All ways Towing		
WARNING TO DRIVER!		
DRIVE LINE OR AXLES MUST BE CHECKED BY A SERVICE TECHNICIAN		
BEFORE YOU DRIVE THIS VEHICLE IF EITHER WAS REMOVED AND		
REINSTALLED FOR TOW. I understand this warning. _____		
	Tax	
Driver	Total	\$802.

#1 Storage From 01/23/13 To _____	"Customer" means owner(s), and/or lessee(s) of the recovered equipment. The Customer authorizes All-Ways Towing LLC. to recover, remove, tow and store the vehicle and equipment identified in this work order. The Customer releases All-Ways Towing LLC, it's agents, members, employees and operators from liability for harm, injury or damage in the towing, recovery, removal, cargo cleanup, disposal and/or storage of the vehicles and equipment except for failure to exercise reasonable care. The undersigned releases All-Ways Towing LLC, It's agents, members, employees and operators from liability for damage and/or theft to personal property left in the vehicles or equipment. The Customer agrees to pay reasonable attorney fees and costs to collect any and all charges pursuant to this work order that are paid within 60 days of the date billed to the Customer.
_____ Days @ \$ 50.00	
#2 Storage From _____ To _____	
_____ Days @ \$ _____	
	Signature _____ Date _____
	Print Name _____

Thank You and... Please have a Safe and Better Day.

Stock # 453990 Lot # 1049498 Claim # 5015T7143



COZAD TOWING

227 S GREELEY HWY
CHEYENNE WY 82009
307-460-1945



1049498

DATE <u>1-29-13</u>		TIME <u>2:45</u>		PO #	
ADDRESS				CITY	
STATE				ZIP	
TOW FROM					
VEHICLE TO <u>015 Ford Explorer</u> DRIVER					
PLATE		VIN		TOW TO <u>yard</u>	
MILEAGE		SERVICE TIME		EXTRA PERSON	
FINISH		FINISH		FINISH	
START		START		START	
TOTAL <u>6</u>		TOTAL		TOTAL	
REASON FOR TOW			SPECIAL EQUIPMENT		
☒ ACCIDENT ☐ ARREST ☐ LAMP(S) BURNED ☐ TOW ZONE ☐ SNOW REMOVAL			☐ START ☐ FLAT TIRE ☐ OUT OF GAS ☒ <u>2 Straps 50</u> ☐ LOCK OUT		
☐ ABANDONED ☐ STOLEN CAR ☐ BREAK DOWN ☐ BACKLASH ID			☒ SINGLE LINE WINDING <u>100</u> ☒ DOUBLE LINE WINDING <u>100</u> ☒ SNOW CHAIN (X) <u>50</u>		
TYPE OF TOW		TOW PER ORDER OF <u>Sherriff</u>		DAMAGE	
☐ SINGLESIDE TOW ☐ FLATBED RAMP ☒ WHEEL LIFT		☐ SINGLESIDE TOW ☐ FLATBED RAMP ☐ WHEEL LIFT			
STORAGE FROM		TOW		MILEAGE	
<u>3</u> DAYS @ \$ <u>50</u>		<u>85.00</u>		<u>30.00</u>	
NOTES				EXTRA MAN	
<u>Car Front & Rear Flaps</u> <u>Slip Hook wheels</u> <u>Don't under car wing</u> <u>from garage to street</u> <u>Block Traffic only</u> <u>only lane, the Hoos 2 lane</u>				<u>500.00</u>	
DRIVER/TRUCK #				LABOR CHARGE	
				<u>35.00</u>	
ANTI-SHOCK SPRING				STORAGE	
DATE				<u>150.00</u>	
WEIGHT PERMANENT				SUB TOTAL	
DATE				<u>650.00</u>	
				TAX	
				TOTAL	
				<u>810.00</u>	

Thank You

only Allowed to block one direction of traffic.
 Extra truck used to pull to Road.

TOWING & RECOVERY
215 GAREPLEY HAVY CHEVROLET WY 82200
307-701-5 TOW

THANK YOU

THANK YOU

Paul Schrader

Plaintiff,

VS.

Wreakers Towing

Defendant.

Case Number: SC-2013-0000404

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FILED

OCT 10 2013

jeannette

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SMALL CLAIMS JUDGMENT

THE ABOVE-ENTITLED MATTER came before the court upon the date shown below. Evidence was introduced and considered.

PLAINTIFF(S):

☒ Appeared in person: Wednesday, October 09, 2013
☐ Did not appear: the Complaint is dismissed.

DEFENDANT(S):

☒ Appeared in person: Wednesday, October 09, 2013
☐ Were served with process, but did not appear; default is entered.

IT IS, THEREFORE, HEREBY ORDERED, ADJUDGED AND DECREED AS FOLLOWS:

☒ Plaintiff has judgment against Defendant as follows:
☐ Defendant has judgment against Plaintiff as follows:

In the principal amount of.....	\$	4245.00
Costs.....	\$	45.00
Other.....	\$	
TOTAL.....	\$	4290.00

NOTICE OF RIGHT TO CLAIM EXEMPTIONS AND TO HEARING

The JUDGMENT DEBTOR is hereby informed that since a judgment has been entered, the JUDGMENT CREDITOR may proceed to seize your property, funds or wages by execution or garnishment. You may be entitled to have the property, funds or wages seized returned to you as exempt from execution or garnishment under one of the following:

1. Social security benefits pursuant to 42 U.S.C. 407 and supplemental security income.
2. Veteran's benefits.
3. Black lung benefits.
4. Personal opportunities with employment responsibilities (POWER) payments.
5. Federal civil service and state retirement system benefits as provided in 5 U.S.C. 8346 and W.S. Section 9-3-426 and 9-3-620.
6. Worker's compensation benefits.
7. Unemployment compensation benefits.
8. Earnings from personal services as defined by W.S. 1-15-102 (a) (vi).
9. Homestead, personal articles and articles used for carrying on a trade or business to the extent provided by W.S. Section 1-20-101 through Section 1-20-109.
10. Other exemptions as provided by law.

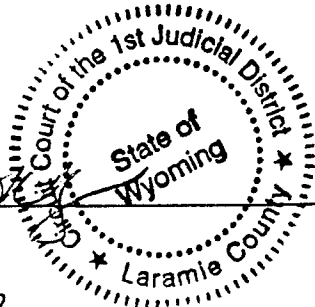
YOU MAY ONLY ASSERT YOUR RIGHT OF ANY OF THE FOREGOING EXEMPTIONS if property, funds or wages are seized by way of execution or garnishment. To do so you must file a written request for a hearing with the Clerk of this Court within ten (10) days after seizure of your property, funds or wages. If you fail to make a written request for a hearing to claim one or more of the foregoing exemptions within ten (10) days after seizure of the property, you may waive or lose your right to claim the exemptions.

IF NO PROPERTY IS SIEZED OR GARNISHED, YOU HAVE NO RIGHT TO A HEARING!

If you wish to Appeal to District Court, you have 30 days from the date of the file stamp.

Dated this 9th day of October, 2013.

Judge / Magistrate



Copies to following parties on the 10 day of October, 2013.

Plaintiff	☒ mail	☐ personally	☐ shelf
Plaintiff's attorney	☐ mail	☐ personally	☐ shelf
Defendant	☒ mail	☐ personally	☐ shelf
Defendant's attorney	☐ mail	☐ personally	☐ shelf

clerk's initial



Message

Lynn Sherman to: Mark Munari

08/12/2013 02:43 PM

From: Lynn Sherman/Cheyenne PD/CheyenneBOPU

To: Mark Munari/Cheyenne PD/CheyenneBOPU@CheyenneBOPU

Please call Candy Kelch at [REDACTED]. Her son was involved in an accident on Friday at 5:30 p.m. Big Al's towed the vehicle. The tow bill from the south side on 3rd x Cribbon to their tow lot was \$260 plus storage over the weekend, the total bill is \$420. She thought that was outrageous. She works for an insurance company and said that she's never seen a tow bill for that much for that little of distance.

Grabber's Diesel Repair
101 Ave C Unit #2
Cheyenne, WY 82007
307-630-0741

ANNEX B6

Invoice # 4106
Date 10/18/2013

Bill To
Highway Patrol

PAID
10/18/2013

Terms

Unit# 99 Toyota 4 Ru... Vin# X0223 Miles N/A PO#

Due Date

Item	Description	Qty	Price	Amount
Towing				
Hook-UP	Hook-Up Fee	1	250.00	250.00T
Enroute	Mileage To Unit	8	6.00	48.00
Loaded	Mileage Loaded	6	10.00	60.00
Winch	Winch Line Use	1	250.00	250.00
Clean Up	Accident Clean Up	1	125.00	125.00T
	Towing Fees			733.00

E-mail grabersdiesel@yahoo.com

Office # 307-638-2205 Fax # 307-638-2339

Subtotal \$733.00
Sales Tax (6.0%) \$22.50
Total \$755.50
Payments/Credits -\$755.50

X _____ Date _____
Customer Signature

Balance Due \$0.00

The above mentioned repairs have been authorized to be performed on the vehicle listed. Payment is due upon completion of repair unless otherwise agreed upon in writing. Customer is responsible for vehicle and contents when parked outside. Customer is responsible for all loss to vehicle and contents due to physical damage, theft, goods disappearance, no matter what the cause and no matter what the reason, while vehicle is parked outside. Vehicles left for more than seven days after completion of repairs will be charged a storage fee of \$45.00 per day until vehicle is removed, unless otherwise agreed upon in writing.
Warranty: Labor is covered for 60 days from bill date on workmanship. Warranty will only be given with approval of management after review of proof of the cause of failures. Once warranty approval is given the labor and parts needed to complete needed repair will be covered. Parts: We do not warranty part failures in any way, shape, or form unless cause by workmanship. Parts warranty is through the part manufacture only.

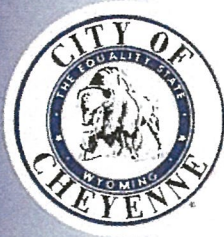
1. According the International Towing Hall of Fame and Memorial, how often is a towing operator struck and killed by a passing car in the United States?
 - a. 1 every 6 days
 - b. 1 every 21 days
 - c. 1 every 40 days
2. According to federal law, when recovering a vehicle from a highway operators are required to wear:
 - a. Flame retardant clothing
 - b. ANSI vest
 - c. Safety boots
3. Quick and efficient removal of vehicles from a crash scene will help to reduce secondary crashes; thus, preventing further injury and undue delay to the motoring public.
 - a. I Agree
 - b. I Disagree
4. The service provided by a towing company on the police rotation list is a reflection of the professionalism of the Cheyenne Police Department.
 - a. I Agree
 - b. I Disagree
5. Victims of a traffic crash who have their vehicles impounded have a reasonable expectation that their property will be stored in a secure lot and that they will be charged a reasonable fee.
 - a. I Agree
 - b. I Disagree
6. What is a reasonable towing fee for a mid-size car that was involved in a minor crash in downtown Cheyenne, in which no special equipment is necessary for the recovery?
\$ _____ Maximum
7. What is a reasonable response time of a standard wrecker to the downtown Cheyenne area at 7:00 PM during calm weather?
_____ Minutes
8. Towing operators should attend training with police officers and fire fighters to learn how to work together as a team to safely clear crash scenes.
 - a. I Agree
 - b. I Disagree
9. A law that does not allow a towing company to release a vehicle to the driver who was arrested for DUI within 10 hours from the time of impoundment would help to improve public safety and protect the towing company.
 - a. I Agree
 - b. I Disagree
10. It is reasonable to establish professional standards for towing companies who choose to be on the police rotation list, which improve efficiency, safety and consistency.
 - a. I Agree
 - b. I Disagre

You may provide any additional comments or feedback on how the Cheyenne Police Department can assist you on the back

Towing Survey Results (ANNEX D)

A = Agree with statement, **D** = Disagree with statement, Blank = unanswered

Question	Fort	Fort (2)	Randy	Cozad	Big AL's	M&F	Affordable	Doug's	Allways	Diamond
Quick and efficient removal of vehicle from a crash scene will help to reduce secondary crashes; thus, preventing further injury and undue delay to the motoring public.	A	A	A	A	A	A	A	A	A	A
The service provided by a towing company on the police rotation list is a reflection of the professionalism of CPD.		D	D	A	A	A	A	A	A	A & D
Victims of a crash who have their vehicles impounded have a reasonable expectation that their property will be stored in a secured lot and be charged a reasonable fee.			D	A	A	A	A	A	A	A
Maximum towing fee	\$175		\$300	\$155	\$110	\$165	\$120	\$150	\$400	\$150
Reasonable response time / minutes	45		30	20	15	20	15	20	45	20
Towing operators should attend training with police and fire to learn how to work together as a team to safely clear crash scenes.	A		A	A	A	A	A	A	A	A
A law that does not allow a towing company to release a vehicle to the driver who was arrested for DUI within 10 hours from the time of impoundment would help to improve public safety and protect the towing company.	D	D	D	A	A	A	A	A	A	A
It is reasonable to establish professional standards for towing companies who choose to be on the police rotation list, which improve efficiency, safety and consistency.	D	A	D	A	A	A	A	A	A	A



A COMMUNITY OF CHOICE

George Tsai
Assistant City Attorney
City of Cheyenne, City Attorney's Office
2101 O'Neil Avenue, Room 308
Cheyenne, WY 82001

October 3, 2013

Via First Class Mail and Electronic Delivery

Mike Basom
3029 Sitting Bull Rd.
Cheyenne, WY 82009

Re: Concerns re: Federal Law Preemption, Proposed Towing Ordinance

Dear Mr. Basom,

Thank you for taking the time to accompany your client, Randy's Towing, to the October 1, 2013 meeting held to discuss a proposed ordinance that would seek to regulate tows originating from the Cheyenne Police Department's "towing rotation list." During the meeting and in a follow-up email dated 10/02/2013 08:25 AM (attached hereto as Attachment A) you raised a number of legal objections that you seemed to believe would preclude the City of Cheyenne (the "City") from passing such an ordinance. I will attempt to summarize my understanding of the points you have raised:

- You stated that the proposed ordinance would be expressly preempted by the terms of 49 USC § 14501(c)(1), (c)(2)(A) and (c)(2)(C). The entire text of 49 USC § 14501 is attached hereto as Attachment B.
 - In particular, you stated that although you understand 49 USC § 14501(c)(2)(C) to permit a "political subdivision of a State" to regulate the price of non-consensual tows of the type the ordinance seeks to regulate, the City is not considered a "political subdivision" and thus would not fall under the carveout contained in 49 USC § 14501(c)(2)(C).
- You cited *Petrey v. City of Toledo*, 246 F.3d 548 (6th Cir. 2001) as case law supporting your contentions that the proposed ordinance would be preempted by 49 USC § 14501 and that in fact a plaintiff may be entitled to § 1983 remedies for the City's violation of preemption statute.

Please inform me if you do not believe this summary is consistent with your concerns.

Upon further legal research, the City Attorney's Office respectfully disagrees with each of your contentions for the reasons set forth below.

Preemption By 49 USC § 14501(c)(1), (c)(2)(A) and (c)(2)(C)

49 USC § 14501(c)(1)

49 USC § 14501(c)(1) states:

“Except as provided in paragraphs (2) and (3), a State, political subdivision of a State, or political authority of 2 or more States may not enact or enforce a law, regulation, or other provision having the force and effect of law related to a price, route, or service of any motor carrier (other than a carrier affiliated with a direct air carrier covered by section 41713 (b)(4)) or any motor private carrier, broker, or freight forwarder with respect to the transportation of property”

Because the City is not a “State” or a “political authority of 2 or more States,” I presume that you believe that the City is preempted as a “political subdivision” subject to the general rule of preemption established by 49 USC § 14501(c)(1) (even though you take the position that the City is not a “political subdivision” for purposes of 49 USC § 14501(c)(2)(C) – this inconsistency is addressed below). Assuming that the City is a “political subdivision” for purposes of 49 USC § 14501(c)(1), it would be exempt from the general preemption (i) under USC § 14501(c)(2)(A) with regard to any proposed regulations pertaining to safety (as established by the US Supreme Court in *City of Columbus v. Ours Garage & Wrecker Serv., Inc.*, discussed below) and (ii) under the plain language of USC § 14501(c)(2)(C) with regard to any proposed price controls for nonconsensual (e.g. towing rotation list) tows. Therefore, although you are correct that 49 USC § 14501(c)(1) does indeed contain a general preemption, all of provisions in the City's proposed towing ordinance relating to safety and towing rotation list price controls are clearly permissible under the exemptions contained in USC § 14501(c)(2)(A) and (C).

With regard to the provisions in the City's proposed towing ordinance *besides* than those relating to safety and rotation list price control, such provisions would be barred under 49 USC § 14501(c)(1) only if they related to “a price, route, or service of any motor carrier.” As you may know, “[p]reemption analysis begins with the ‘presumption that Congress does not intend to supplant state law.’” *Tillison v. Gregoire*, 424 F.3d 1093, 1098 (9th Cir. 2005), citing *N.Y. State Conference of Blue Cross & Blue Shield Plans v. Travelers Ins. Co.*, 514 U.S. 645, 654, 115 S.Ct. 1671, 131 L.Ed.2d 695 (1995). The established standard for whether a local regulation is preempted under 49 USC § 14501(c)(1) is if the regulation “has more than an indirect, remote, or tenuous effect on the motor carrier's prices, routes, or services.” *Tillison v. Gregoire*, 424 F.3d at 1099. In upholding the local regulation, the *Tillison* court determined that this standard was not met in the instance of a state statute that required towing companies to obtain written authorization from a public official prior to nonconsensual tows on public property and requiring

public officials to be present for the tow. After analyzing the provisions in the City's proposed towing ordinance aside from those relating to safety and rotation list price control, these other provisions would not be in violation of the *Tillison* standard insofar as they would not have more than an indirect, remote, or tenuous effect on a tower's other pricing, routes or services it could offer.

49 USC § 14501(c)(2)(A)

Notwithstanding the analysis above, many of the key provisions of the draft ordinance fall under 49 USC § 14501(c)(2)(A), which states:

“Paragraph (1) . . . shall not restrict the safety regulatory authority of a State with respect to motor vehicles, the authority of a State to impose highway route controls or limitations based on the size or weight of the motor vehicle or the hazardous nature of the cargo, or the authority of a State to regulate motor carriers with regard to minimum amounts of financial responsibility relating to insurance requirements and self-insurance authorization.”

The United States Supreme Court held in *City of Columbus v. Ours Garage & Wrecker Serv., Inc.*, 536 U.S. 424, 122 S. Ct. 2226, 153 L. Ed. 2d 430 (2002) (attached hereto as Attachment C) that § 14501(c)(2)(A) spares from preemption “local as well as state regulation” regarding safety. *Id.* at 442 (emphasis added). The Court reasoned that Congress’ use of the phrase “state [or] political subdivision of a state,” in purporting to preempt any law enacted by state or its subdivisions relating to price, route, or service of any motor carrier transporting property, while it used only the term “state” in stating that this preemption directive “shall not restrict the safety regulatory authority of a State with respect to motor vehicles,” was not sufficiently clear and manifest indication of Congressional intent to preempt local safety laws, and therefore did not bar states from delegating to municipalities the power to regulate issues relating to public safety, including with regard to towing. In the Court’s words:

“Congress’ clear purpose in § 14501(c)(2)(A) is to ensure that its preemption of States’ economic authority over motor carriers of property, § 14501(c)(1), “not restrict” the preexisting and traditional state police power over safety. That power typically includes the choice to delegate the State’s “safety regulatory authority” to localities. Forcing a State to refrain from doing so would effectively “restrict” that very authority.” *City of Columbus v. Ours Garage & Wrecker Serv., Inc.*, 536 U.S. at 439.

The State of Wyoming has clearly delegated safety regulatory authority to local municipalities and cities in Wyo. Stat. § 15-1-103(a)(xli), which states that “[t]he governing bodies of all cities and towns may . . . [a]dopt ordinances, resolutions and regulations, including regulations not in conflict with this act and necessary for the health, safety and welfare of the city or town.” Thus, because Wyoming has delegated the State’s “safety regulatory authority” to localities, such as the

City, the local City regulations regarding the safety of towing operations is permitted under the Court's holding in *City of Columbus*.¹

It is clear that the provisions of the proposed towing ordinance relating to safety are exempt from preemption under 49 USC § 14501(c)(2)(A). Determining whether a particular provision of the ordinance relates to safety is a separate case-by-case inquiry. The majority of Courts that have addressed the "scope" of the safety exception have interpreted the safety exception quite broadly. See *Galactic Towing, Inc. v. City of Miami Beach*, 341 F.3d 1249, 1251 (11th Cir. 2003) (attached hereto as Attachment E) (holding that City's non-consensual towing ordinance, including towing permit, business application, written authorization for tow, and storage within city limits requirements fell under the purview of the § 14501(c)(2)(A)'s public safety exception); *Cole v. City of Dallas*, 314 F.3d 730 (5th Cir. 2002) (attached hereto as Attachment E) (holding that regulation requiring criminal history, documented mental illnesses or unsafe driving records inquiry fell within safety exception); *Hott v. City of San Jose*, 92 F. Supp. 2d 996 (N.D. Cal. 2000) aff'd sub nom. *Hott v. City of San Jose, Cal.*, 22 F. App'x 799 (9th Cir. 2001) (attached hereto as Attachment G) (holding that ordinance prohibiting intentional fraud on the part of towing companies fell with § 14501(c)(2)(A)'s safety exception); *Ace Auto Body & Towing, Ltd. v. City of New York*, 171 F.3d 765, 774 (2d Cir. 1999), holding modified by *Loyal Tire & Auto Ctr., Inc. v. Town of Woodbury*, 445 F.3d 136 (2d Cir. 2006) (attached hereto as Attachment H) (holding towing ordinance requiring, *inter alia*, licensing, display of information, reporting, record keeping, disclosure of criminal history, insurance, posting of bond by towing companies, and maintaining local storage and repair facilities, fell within 49 USC § 14501(c)(2)(A) safety exception); see also *Tow Operators Working to Protect Their Right to Operate on the Streets of Kansas City v. City of Kansas City, Mo.*, 338 F.3d 873 (8th Cir. 2003) (attached hereto as Attachment I) (holding that safety exception was not limited to regulations concerning vehicles' mechanical components). I would also direct you to Section 1.2.5 of the May 2007 *Report to Congress on the "Review of Federal and State Laws Regarding Vehicle Towing"* prepared for the Federal Motor Carrier Safety Administration (attached hereto as Attachment J) for an informative discussion of the broad scope of the 49 USC § 14501(c)(2)(A) safety exception. The vast majority of the provisions of the City's proposed ordinance unrelated to price are safety-related, and, based on the broad scope of the safety exception as established by the above described case law, would fall under 49 USC § 14501(c)(2)(A)'s safety exception from preemption.

49 USC § 14501(c)(2)(C) and the City as a Political Subdivision

Finally, the terms of the proposed ordinance seeking to impose price caps on police-initiated tows off of the towing rotation list fall squarely under the terms of 49 USC § 14501(c)(2)(C), which states:

"Paragraph (1) . . . does not apply to the authority of a State or a political subdivision of a State to enact or enforce a law, regulation, or other provision relating to the price of for-hire motor vehicle transportation by a tow truck, if such

¹ The City of Columbus decision is further supported by the Wyoming Legislative Services Office's interpretation of this issue in 13 RM 009 (attached hereto as Attachment D), which summarizes the safety exception on page 7: "[a] state or local authority may enact a safety regulatory program with respect to motor carriers" (emphasis added).

transportation is performed without the prior consent or authorization of the owner or operator of the motor vehicle.”

As explained above, in order for your 49 USC § 14501(c)(1) preemption argument to work, you would have to assume that the City is a “political subdivision.” Under this argument, it would be disingenuous for you to try to argue that the City is not a political subdivision capable of regulating nonconsensual tow rates under 49 USC § 14501(c)(2)(C). Nonetheless, you took the position in Tuesday’s meeting that the City is most certainly *not* a “political subdivision,” presumably to preclude the City from promulgating a tow rate sheet. If you are correct, then the City would be exempt altogether from the general rule of preemption established in 49 USC § 14501(c)(1), because it would fail to be considered a “State,” a “political authority of 2 or more States,” or a “political subdivision” that is regulated by 49 USC § 14501(c)(1). I cannot imagine that this is the outcome that you wish to reach.

It is nonetheless well established under Wyoming state statutes that the City would indeed be considered a “political subdivision” of the State of Wyoming. *See* Wyo. Stat. Ann. § 19-13-102 (“(iv) ‘Political subdivision’ means an incorporated community or a county in Wyoming”); Wyo. Stat. Ann. § 22-1-102 (“(xxi) ‘Political subdivision’ includes *any* county, *city*, town...”); Wyo. Stat. Ann. § 35-9-152 (“(vii) ‘Political subdivision’ means *any* county, *city*, town or fire protection district of the state”); Wyo. Stat. Ann. § 16-4-201 (“(iv) ‘Political subdivision’ means *every* county, *city* and county, city, incorporated and unincorporated town, school district and special district within the state”); Wyo. Stat. Ann. § 9-11-102 (“(ii) ‘Political subdivision’ means a county, *municipal* or special district governing body or any combination thereof...”); Wyo. Stat. Ann. § 9-2-401 (“(iv) ‘Political subdivision’ means a county, *municipality*, special district or other local government entity”); Wyo. Stat. Ann. § 16-8-101 (“(a) No governmental entity, including the state, or any municipality, county *or other* political subdivision”); Wyo. Stat. Ann. § 15-10-101 (“(v) ‘Political subdivision’ means county, *city* or town, school district or any other local government entity of the state or the officers thereof.”); Wyo. Stat. Ann. § 37-1-101 (“(iii) ‘Municipality’ when used in this chapter shall mean and include any town, village, city, county *or other* political subdivision of this state”); Wyo. Stat. Ann. § 17-16-140 (“(xvi) ‘Governmental subdivision’ includes authority, county, district, municipality, *and any other* political subdivision”) (emphasis added). Additionally, I am sure that you are also familiar with the Wyoming Supreme Court’s decision in *Witzenburger v. State ex rel. Wyoming Cmty. Dev. Auth.*, 575 P.2d 1100 (Wyo. 1978) (attached hereto as Attachment K), where the Court held:

“[Article XVI, Wyoming Constitution] Section 6 indicates that a county, city, township, town and school district are political subdivisions, when it uses the language, ‘any county, city, township, town, school district, or any other political sub-division,’ . . . [t]he constitutional examples of counties, towns and school districts are ones that have the distinctive badges of a political subdivision. Each has a geographic area smaller than the state, each is organized with officers elected by its inhabitants to carry on a governmental function, having a local purpose and provision is made for the levy and assessment of taxes to finance those purposes.” *Id.* at 1111-13.

Finally, as a general matter, even if there was case law or statute that somehow supports your contention that the City is not a "political subdivision," it seems strange to attempt to rely on local Wyoming precedent setting forth a Wyoming-specific definition of the term "political subdivision" in interpreting what the United States Congress intended when it used that term in federal legislation.

In sum, it would appear that the City is a political subdivision for purposes of 49 USC § 14501(c)(2)(C) and as such would not be preempted in imposing price caps on police-initiated tows off of the towing rotation list.

Petrey v. City of Toledo

It is not appropriate to rely on *Petrey v. City of Toledo*, 246 F.3d 548 (6th Cir. 2001) (attached hereto as Attachment L), seeing as *Petrey* has been abrogated by the United States Supreme Court in *City of Columbus v. Ours Garage & Wrecker Serv., Inc.*, 536 U.S. 424 (2002) and is no longer good law. As discussed above, *City of Columbus* was the seminal Supreme Court decision that settled the circuit split on the safety regulation issue and established the City's ability, as a municipality, to promulgate safety regulations regulating the towing industry. See May 2007 *Report to Congress on the "Review of Federal and State Laws Regarding Vehicle Towing"* at 1.2.4.

I trust that you will be distributing this letter and attachments to your client to inform him of our legal analysis. I will be distributing this letter to all towing companies who attended Tuesday's meeting with the City's next group mailing in order to clarify the City Attorney Office's position on these issues and to dispel any mistaken notions that might have been arisen from your remarks. Personally, I was quite pleased with the progress made and the constructive input we received from the towers at Tuesday's meeting.

We look forward to any constructive input you or your client may have as we continue to seek engagement and suggestions from the Cheyenne towing community on these matters. If I can be of assistance with regard to this or any other matter, please do not hesitate to contact me at 307.637.6380 or gtsai@cheyennecity.org.

Respectfully,



George Tsai
Assistant City Attorney

c: Cheyenne Towing Companies
Lieutenant Mark Munari
Brian Kozak, Chief of Police
Dan White, City Attorney
John Ridge, Deputy City Attorney

Enclosures

CHEYENNE POLICE



ANNEX F

Protecting the legend...

2020 Capitol Avenue • Cheyenne, WY 82001 • Phone (307) 637-6500 • Fax (307) 637-6558 • www.cheyennepd.org

October 14, 2013

Dear Towing and Wrecker Recovery Business Owner,

On October 1, 2013 Lieutenant Munari and I met with representatives from nine towing companies to review the preliminary draft of a proposed towing ordinance. I would like to thank those of you participated in the meeting. As a result of your valuable input we made several more revisions to the ordinance, which is attached.

Attorney Mike Basom questioned the City's legal authority to regulate towing companies who volunteer for the police rotation list. Assistant City Attorney George Tsai provided the attached legal references, which clearly indicate that the proposed ordinance is permissible and legal.

During the meeting an alternative to having a cap on allowable fees was suggested. The idea was to form a committee, who would periodically meet to review claims of excessive billing practices. After further research I have decided not to proceed with this idea since it would be too burdensome of a process.

Those who attended the meeting completed a survey. The survey indicated that seven out nine companies would charge a maximum fee less than \$160. The other two companies were well above this level. This indicated that the proposed committee would most likely set the standard similar to the one I proposed in the original cap, which was \$160. Based on your feedback, I did add a method to charge a fee in excess of the cap in certain exigent circumstances, as listed in the attached ordinance.

It was interesting to learn that in the survey, seven of the nine towing companies would support standards to improve professionalism, safety and service, which is the purpose of the proposed ordinance.

I have scheduled another meeting for us to continue sharing ideas before we provide the ordinance to the City Council. The meeting will be on Tuesday, October 29th, 2013 at 10:00 AM in the City Council Chambers. In the meantime, please review the attached documents, and if you believe there should be any major changes, please provide your feedback to me in writing prior to the meeting. We can address any minor changes at the meeting.

I deeply appreciate your involvement.

Sincerely,

Brian N. Kozak
Chief of Police

**IMPROVE EFFICIENCY, SAFETY AND SERVICE IN
POLICE ORDERED VEHICLE TOW AND RECOVERY
OPERATIONS IN CHEYENNE, WYOMING**

Towing Ordinance

Staff Report

Brian N. Kozak

Chief of Police

Cheyenne Police Department

November 4, 2013

IMPROVE EFFICIENCY, SAFETY AND SERVICE IN POLICE ORDERED VEHICLE TOW AND RECOVERY OPERATIONS IN CHEYENNE, WYOMING

Problem

The State of Wyoming has no regulation of tow and recovery operations. The City of Cheyenne ordinance requires that wrecker companies on the police rotation list be licensed; however, there are no other requirements. The Police Department has received complaints from accident victims, because they have been required to pay unreasonable and excessively high fees to retrieve their cars. Wrecker companies have created various business names so they can be on the rotation list multiple times. In addition, police officers have had to wait on the scene while several companies have had response times in excess of an hour. Trucks have arrived without the proper safety equipment to complete the job and impounded vehicles have been stored in open fields. Credible towing companies have requested that the Police Department implement professional standards for all companies who desire to be on the rotation list follow.

A local businessman started a Facebook page to highlight unethical towing practices, and he has been very vocal on local talk radio programs, calling for accountability.

The service provided to the community by the towing industry is a reflection on the professionalism of the Cheyenne Police Department (CPD).

Assumptions

- Quick and efficient removal of vehicles from a crash scene will help to reduce secondary crashes; thus, preventing further injury and undue delay to the motoring public.
- The service provided by a towing company on the police rotation list is a reflection of the professionalism of CPD.
- Victims of a crash who have their vehicles towed have a reasonable expectation that their property will be stored in a secured lot and be charged a reasonable fee.
- Towing operators should attend training with police and firefighters to learn how to work together as a team to safely clear crash scenes.

- A law that does not allow a towing company to release a vehicle to the driver who was arrested for DUI within 10 hours from the time of impoundment would help to improve public safety and protect the towing company.
- It is reasonable to establish professional standards for towing companies who choose to be on the police rotation list, which improve efficiency, safety and consistency.
- A reasonable maximum towing fee is \$160 or below.
- The average tow response time is 30 minutes or less.

Facts

- Between January 1, 2013 and October 31, 2013 the CPD initiated 2,185 calls for service to request a tow truck (ANNEX A). See Annex A for details of calls.
- The CPD has investigated six towing complaints in 2013 (ANNEX B)

	<u>DATE</u>	<u>Towing Company</u>	<u>Fee Charged</u>
1.	1/5/13	C Bar H Towing	\$850
	Would not give customer an estimate prior to work / charged four hours of winching for two hours of work / charged an afterhours fee		
2.	1/23/13	All-Ways Towing	\$802
	Charged a 10% administration fee / \$300 response fee		
3.	1/29/13	Cozad Towing	\$650
	LCSO call / \$500 to winch car		
4.	4/15/13	Wreckers Towing	\$6,000
	WHP call / company would not answer phone for three weeks causing \$2,000 in storage fees / \$4,000 to tow a truck and trailer with two ATVs. Vehicle owner sued company and won; however, the company closed business name to operate under another name, never paying the vehicle owner		
5.	8/12/13	Big Al's Towing	\$420
	Charged \$110 because it was a CPD call		
6.	10/1/13	Graber's Diesel Repair	\$755
	WHP call / incident causing attention on the radio and on Facebook		

Discussion

Currently, those towing and recovery companies who wish to respond to police calls must be licensed by the City of Cheyenne. However, there are no other ordinance requirements for the towing companies to abide by. A 1980 City Council resolution is in place, which requires towing companies on the rotation list to charge reasonable fees; this resolution is unenforceable by the police. Additionally, there are no state regulations to govern towing other than Federal Department of Transportation laws, which require tow trucks to have certain levels of liability coverage.

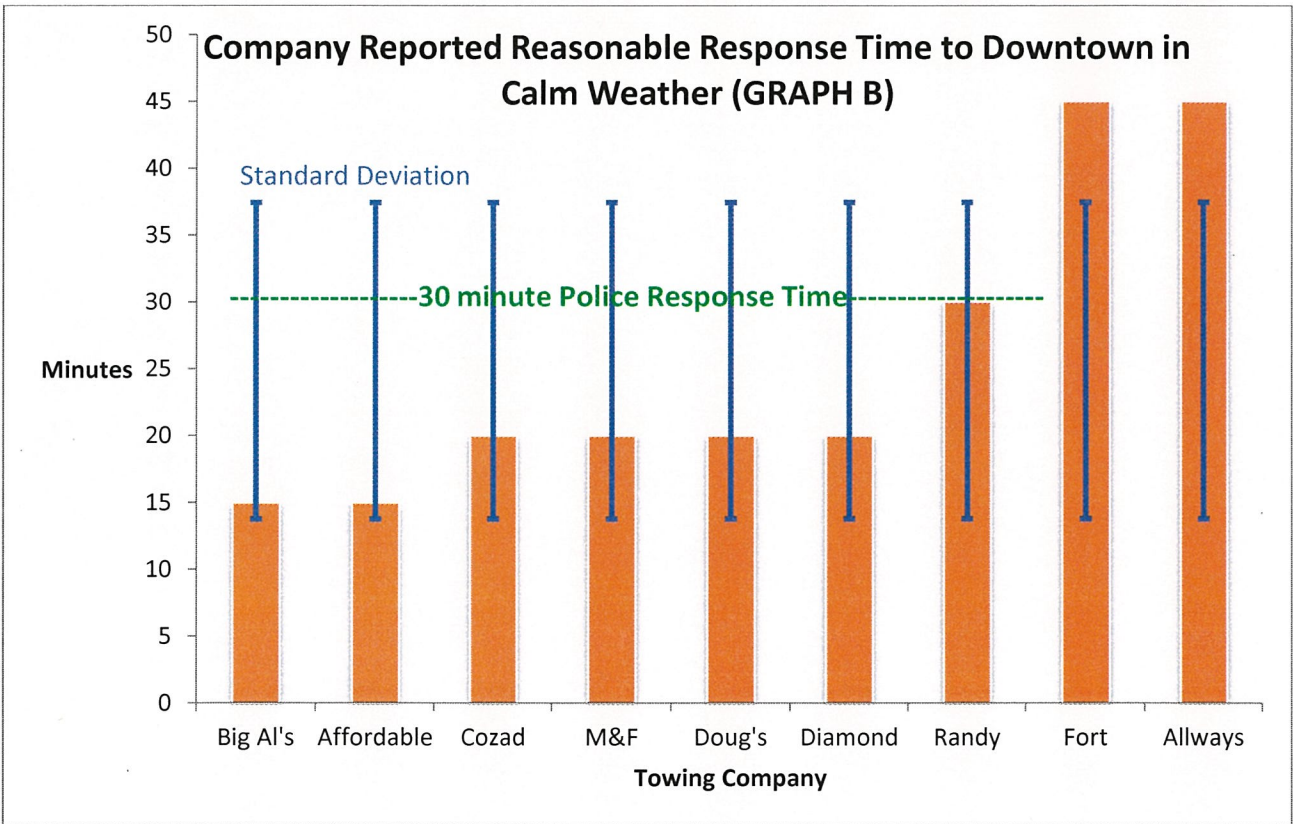
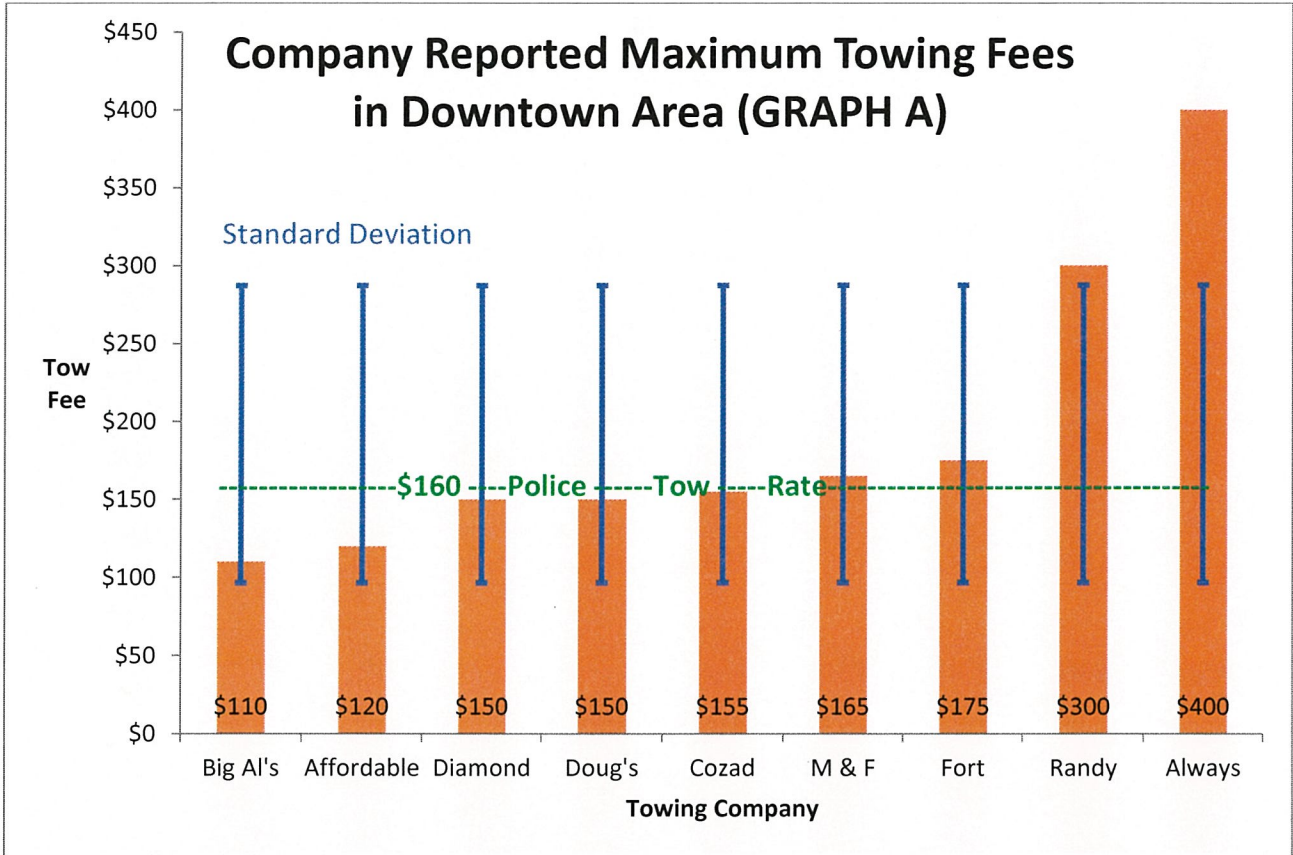
Normally, a customer can select a towing company based on customer service and fees under a free market system. However, when a vehicle owner is incapacitated due to a crash, he places his property in the care of the CPD and trusts that it will be properly handled at a reasonable cost. Nonetheless, there are towing companies who realize that the vehicle owner has to pay the towing fees (even if they are unreasonably high) to retrieve their car, since there are no oversight regulations. Thus, the CPD has received the above listed complaints related to towing fees. Creditable towing companies have also come forward to request City regulation.

Additionally, police officers have complained about excessive tow truck response times and that the operators are not properly trained or equipped to deal with the situation.

The CPD worked with the City Clerk and the City Attorney to draft a towing and wrecker recovery operations ordinance to improve the health, safety and welfare of residents. In early September, 2013 a draft ordinance and fee schedule was mailed to each licensed towing company in preparation for a meeting with them on October, 1, 2013. Nine towing companies and their legal representation attended the meeting. In order to validate the above assumptions each company representative completed a survey (ANNEX C). The results of the survey were as follows (ANNEX D):

- Quick and efficient removal of vehicles from a crash scene will help to reduce secondary crashes; thus, preventing further injury and undue delay to the motoring public.

- a All agreed
- The service provided by a towing company on the police rotation list is a reflection of the professionalism of CPD.
 - a Seven companies agreed (Fort and Randy disagreed)
- Victims of a crash who have their vehicles towed have a reasonable expectation that their property will be stored in a secured lot and be charged a reasonable fee.
 - a Seven companies agreed (Randy disagreed)
- Towing operators should attend training with police and firefighters to learn how to work together as a team to safely clear crash scenes.
 - a All agreed
- A law that does not allow a towing company to release a vehicle to the driver who was arrested for DUI within 10 hours from the time of impoundment would help to improve public safety and protect the towing company.
 - a Seven agreed (Fort and Randy disagreed)
- It is reasonable to establish professional standards for towing companies who choose to be on the police rotation list, which improve efficiency, safety and consistency.
 - a Eight agreed (Randy disagreed)
- A reasonable maximum towing fee is \$160 or below.
 - a Seven were near \$160 or below (see GRAPH A)
 - The CPD had no way to verify average fees other than to ask the towing companies.
- The average tow response time is 30 minutes or less.
 - a Seven were near 30 minutes or below (see GRAPH B)
 - The CPD has not tracked response times, but will start if the ordinance passes.



Attorney Mike Basom, who represented Randy's Towing, made an argument that federal law preempted the ability of a municipality from regulating towing. The City Attorney completed a six-page memo citing case law to affirm that the City definitely has the authority to regulate towing and establish reasonable fee caps (ANNEX E). The memo was mailed to each licensed towing company along with a letter from CPD (ANNEX F).

Several towing representatives recommended that a towing committee be established to review towing complaints of price gouging as an alternative to establishing a fee schedule. However, the survey confirmed that the committee would most likely set \$160 as a reasonable maximum fee. Thus, convening a committee while the vehicle owner is waiting for resolution could become a cumbersome process; it was recommended to proceed with a fee schedule. However, a method to seek approval to charge beyond the limits of the schedule was added to the ordinance.

The Towing and Recovery Association of America Inc. stated in their published Municipal Towing Guide, "Governmental agencies have an obligation to consumers to insure that the rates that participants in towing programs charge are fair and reasonable. It is one of the few areas in which a governmental agency can dictate rates" (TRAA). CPD randomly researched towing regulation fee caps in other areas and discovered the following schedules:

Jurisdiction (References cited below)	Max Tow Fee	Daily Storage
Colorado PUC	\$160	\$30
Aiken, SC	\$85	\$15
Forest Park, OH	\$105	\$15
Palm Beach, FL	\$162	\$25

Another alternative would be to request a bid proposal for one or two towing companies to provide exclusive service to CPD. Considering that CPD tows generate approximately \$500,000 a year to the towing industry, a sole bid provider would benefit, while the other companies may not survive. Thus, this option is not recommended at this time.

Several companies requested that they only be allowed to register one company name on the police rotation list. Five local towing companies have duplicate names so that they can be on the rotation list multiple times, increasing their likelihood of being called out. Below is a list of current companies on the rotation list with their secondary business name:

Primary Name	Secondary Name
5-OH Towing and Recovery	Affordable Towing and Recovery
All-ways Towing of Wyoming	
Big Al's Towing and Recovery	
Cozad	Wreckers
Diamond A	
Express Towing and Recovery	Shutt's Auto Repair
Fort Towing	I 80 Towing
Jiffy Towing	M & F Towing
Randy's Towing	
Doug's Towing	
Grabers Diesel Repair	

CPD revised the recommended ordinance and incorporated recommendations from the meeting with the towing companies. CPD sent a copy of the revised ordinance to each company and request written feedback before another meeting was held on October 29, 2013 (ANNEX F). No feedback was received. At the meeting on October 29, 2013, the towing representatives did not provide any other recommendations for the ordinance as presented. The ordinance was developed from best practices throughout the United States to address the major areas of concern:

Safety

Chief Brian Kozak is one of the nation's experts on Traffic Incident Management and serves on the International Association of Chiefs of Police Highway Safety Committee. The Committee produced a video to teach first responders about the importance of quickly removing incidents from the roadway to prevent secondary crashes (TIM). Secondary crashes kill 60 tow operators,

12 police officers, 276 highway / public works employees and 6 firefighters a year (TIM). First responders can reduce the odds of being stuck by wearing reflective vests and by working together as a team. Thus, the ordinance requires tow operators to wear reflective vests, and for company owners to attend training as required by CPD. The trucks shall be properly equipped to efficiently clear a crash scene. Additionally, the ordinance requires a response time of less than 30 minutes in normal conditions.

Customer Protection

The ordinance requires each business to complete background checks on their operators. Impound lots shall be fenced, lighted and have an option for indoor storage. The fee schedule will insure that customers are charged a reasonable fee. Drivers who have been cited for DUI will not be allowed to obtain their impounded vehicle for at least ten hours.

Accountability

CPD will be entitled to audit the records and storage lots of the towing companies on the police rotation list to verify the ordinance is being followed. Violations of the ordinance will cause suspension or removal from the rotation list. Towing companies will only be allowed to register one company name per fenced impound lot.

Conclusion

When citizens are involved in car crashes, they place their confidence in the CPD that their property will be taken care of at a reasonable cost. Unfortunately, this has not been the case. Vehicles have been left unsecured in an open field, and citizens have been gouged with unreasonable towing fees. This reflects directly on the professionalism of the City since these victims have placed their trust in us. Thus, the City has the right to expect reasonable service from the towing companies who volunteer to be on the rotation list.

Reasonable expectations that improve safety, efficiency and service can be governed through a towing ordinance. The ordinance as presented has been developed from best practices and input from our towing businesses. It is legally sound and presented for your approval.

Recommendation

Staff recommends approval of the ordinance as presented:

AN ORDINANCE CREATING CHAPTER 5.78, TOWING AND WRECKER RECOVERY OPERATIONS, AMENDING CHAPTER 5.04, SECTION 5.04.030, TYPES OF BUSINESSES, ACTIVITIES AND EVENTS, AND CHAPTER 5.08, SECTION 5.08.270, TOWING (VEHICULAR), OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, AND REPEALING IN ITS ENTIRETY SECTION 10.12.190, TOWING FIRM STANDARDS, OF CHAPTER 10.12, ADMINISTRATION AND ENFORCEMENT, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE WYOMING

Staff recommends approval of the resolution to adopt the fee schedule as presented:

A RESOLUTION PROMULGATING MAXIMUM APPROVED TOWING RATES FOR TOWS WITHIN THE CITY OF CHEYENNE WHEN TOWING SERVICE IS REQUESTED BY THE CHEYENNE POLICE DEPARTMENT

Since the ordinance addresses issues from Resolution No. 2463 and No. 2616, Staff

Recommends approval of:

A RESOLUTION REPEALING RESOLUTION NO. 2463 AND RESOLUTION NO. 2616, PERTAINING TO TOWING SERVICE STANDARDS AND STANDARDS FOR OPERATORS FOR THOSE TOWING FIRMS APPROVED TO BE ON THE CHEYENNE POLICE DEPARTMENT ROTATION CALL LIST, IN THEIR ENTIRETY

Works Cited

Aiken, SC, Towing, Impound, and Inventory of Vehicles, www.IACPnet.com

Colorado, PUC, Public Utilities Commission on Towing,
<http://www.dora.state.co.us/puc./rules/723-6-6500TowingRules08-01-12.pdf>

Forest Park, OH, Wrecker and Towing Rules and Regulations, www.IACPnet.com

Palm Beach, FL, Non-Consent Maximum Towing Rates provided by the Palm Beach County,
2013

TIM video, “Manage to Survive” International Association of Chiefs of Police, 2013
<http://www.youtube.com/watch?v=FrnmYHq0LYs&feature=relmfu>

TRAA, Towing and Recovery Association of America – Municipal Towing Guide
<http://www.towserver.net/>